

25LBCV02552 25LBCV02552

County: los-angeles

Division: Civil Law and Motion

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Case Number: 25LBCV02552 Hearing Date: August 20, 2026 Dept: S28

BACKGROUND

On

September 11, 2025, Plaintiff

filed a lemon law complaint against Defendant.

On

May 13, 2026, Defendant filed the instant Motion for Summary Adjudication of the Fifth Cause of Action for Fraudulent Inducement – Concealment.

On

August 4, 2026, Defendant filed a notice of non-opposition.

As

of August 19, 2026, Plaintiff has not filed an opposition.

DISCUSSION

Applicable

Law

The purpose of a motion for summary judgment or summary adjudication “is to provide courts with a mechanism to cut through the parties’ pleadings in order to determine whether, despite their allegations, trial is in fact necessary to resolve their dispute.” (Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 843.) “Code of Civil Procedure section 437c, subdivision (c), requires the trial judge to grant summary judgment if all the

evidence submitted, and ‘all inferences reasonably deducible from the evidence’ and uncontradicted by other inferences or evidence, show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law.” (Adler v. Manor Healthcare Corp. (1992) 7 Cal.App.4th 1110, 1119.)

“In ruling on the motion, the court must consider all of the evidence and all of the inferences reasonably drawn therefrom [citation] and must view such evidence [citations] and such inferences [citations] in the light most favorable to the opposing party.” (Aguilar, supra, at pp. 844-845 [quotation marks omitted].)

“On a motion for summary judgment, the initial burden is always on the moving party to make a prima facie showing that there are no triable issues of material fact.” (Scalf v. D. B. Log Homes, Inc. (2005) 128 Cal.App.4th 1510, 1519.) “A defendant or cross-defendant has met his or her burden of showing that a cause of action has no merit if the party has shown that one or more elements of the cause of action, even if not separately pleaded, cannot be established, or that there is a complete defense to the cause of action. Once the defendant or cross-defendant has met that burden, the burden shifts to the plaintiff or cross-complainant to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto. The plaintiff or cross-complainant shall not rely upon the allegations or denials of its pleadings to show that a triable issue of material fact exists but, instead, shall set forth the specific facts showing that a triable issue of material fact exists as to the cause of action or a defense thereto.” (Code Civ. Proc. § 437c, subd. (p)(2).)

To establish a triable issue of material fact, the party opposing the motion must produce substantial responsive evidence. (Sangster v. Paetkau (1998) 68 Cal.App.4th 151, 166.) “If the plaintiff cannot do so, summary judgment should be granted.” (Avivi v. Centro Medico Urgente Medical Center (2008) 159 Cal.App.4th 463, 467.)

Analysis

A.

ISSUE

1: Plaintiff's Fifth Cause of Action for Fraudulent Inducement – Concealment
Fails as a Matter of Law Because AHM Had No Direct Dealings with Plaintiff and,
Therefore, Had No Duty to Disclose Additional Information to Plaintiff

Fraud based on concealment requires

that "(1) the defendant must have concealed or suppressed a material fact, (2) the defendant must have been under a duty to disclose the fact to the plaintiff, (3) the defendant must have intentionally concealed or suppressed the fact with the intent to defraud the plaintiff, (4) the plaintiff must have been unaware of the fact and would not have acted as he did if he had known of the concealed or suppressed fact, and (5) as a result of the concealment or suppression of the fact, the plaintiff must have sustained damage." (Bigler-Engler v. Breg, Inc. (2017) 7 Cal.App.5th 276, 310-311 (Bigler-Engler).)

In

the absence of a fiduciary relationship, Plaintiff's claim for concealment requires one of three conditions: (1) exclusive knowledge of a material fact by Defendant; (2) active concealment of a material fact; or (3) partial representations coupled with suppression of material facts. (Bigler-Engler, supra, 7 Cal.App.5th at 311; LiMandri v. Judkins (1997) 52 Cal.App.4th 326, 336.)

Defendant argues that Plaintiff

cannot prove his fraudulent concealment cause of action because the parties had no direct dealings or relationship giving rise to a fiduciary duty, and Plaintiff may not prove fraudulent inducement-concealment through nondisclosure alone under Bigler-Engler. (Mot., p. 12.) Defendant further argues that Plaintiff produced no evidence that Defendant had exclusive knowledge of a defect at the time of sale. (Ibid.)

Specifically, Defendant contends

that Honda of El Cajon, the selling dealership, was not AHM's agent for purposes of Plaintiff's fraud claim: "[T]he relationship between automobile manufacturers and their dealers has been examined by a host of courts throughout the country, all of which have agreed that dealers are not 'agents' of manufacturers." (Herremans v. BMW of N. Am., LLC (C.D. Cal. Oct. 3, 2014) No. CV 14-02363 MMM PJWX, 2014 WL 5017843, at *6; see also Williams v. Yamaha Motor Corp., U.S.A. (C.D. Cal. Jan. 7, 2015) No. CV 1305066 BROVBKX, 2015 WL 13626022, at *6 (same).)

Defendant puts forth the following

undisputed material facts: Plaintiff purchased the Subject Vehicle from Honda of El Cajon in El Cajon, California (UMF No. 1); Honda of El Cajon was not AHM's agent; and Plaintiff has not produced any evidence that there were communications with anyone at AHM prior to the purchase of the Subject Vehicle (UMF No. 3).

Here, Defendant has met

its initial burden of establishing the absence of a triable issue of material fact as to whether it owed a duty to Plaintiff or had exclusive knowledge of a purported defect in Plaintiff's vehicle at the time of sale. The undisputed material facts show that Plaintiff purchased the Subject Vehicle from Honda of El Cajon and the dealership is not—and was not—AHM's agent. The undisputed facts further show that Plaintiff did not communicate with AHM at any time before or during the purchase of the Subject Vehicle. Without any means of communication before or during the purchase phase, Defendant establishes that it could not have owed Plaintiff a duty or made any fraudulent misrepresentations to Plaintiff. The burden now shifts to Plaintiff, but Plaintiff fails to oppose.

Thus, summary adjudication is GRANTED as to the fifth cause of action for lack of a duty to disclose.

B.

ISSUE

2: Plaintiff's

Fifth Cause of Action for Fraudulent Inducement – Concealment Fails as a Matter of Law Because Plaintiff Cannot Prove Any Damages Caused by AHM's Alleged Fraudulent Concealment

Defendant argues that Plaintiff

cannot prove any damages caused by AHM's alleged fraudulent concealment. Under California law, the measure of damages for a fraud claim is "the difference between the actual value of that with which the defrauded person has parted and the actual value of that which he received." (Cal. Civ. Code § 3343.)

Defendant argues that because

Plaintiff is entitled only to his out-of-pocket damages, he must produce evidence of the market value of the vehicle he received, i.e., the market value of the vehicle if all its flaws were known. Defendant puts forth the following

undisputed material facts: Plaintiff has not identified any monetary value of the Subject Vehicle on November 12, 2020, the date he purchased the vehicle, with or without all known defects and/or nonconformities. (UMF No. 5.) Indeed, the only damages Plaintiff has identified as supporting his alleged fraud claim are those costs related to the purchase and maintenance of the Subject Vehicle. (UMF No. 6.) Moreover, Plaintiffs' document production does not include any documents evidencing a calculation of alleged damages. (See Plaintiff's document production attached to the Declaration of Alina Mooradian as Exhibit 6 and see Declaration of Alina Mooradian ¶ 12.)

Here, Defendant has met its initial burden of establishing the absence of a triable issue of material fact as to whether Plaintiff suffered damages from Defendant's alleged fraudulent concealment. Defendant's undisputed material facts show that Plaintiff has not produced evidence of the market value of the vehicle he received, i.e., the market value of the vehicle if all its flaws were known. The burden now shifts to Plaintiff, but Plaintiff fails to oppose.

Thus, summary adjudication is GRANTED as to the fifth cause of action for lack of damages.

CONCLUSION

Defendant's Motion for Summary Adjudication of the Fifth Cause of Action for Fraudulent Inducement – Concealment is GRANTED.